



CHAPTER xxii.

An Act to empower the urban district council of A.D. 1913.
Mynyddislwyn to purchase the gas undertakings and
to supply gas within the Sirhowy Valley portion of
their district to make further provision in regard to
the improvement and local government of the district
and for other purposes. [4th July 1913.]

WHEREAS the urban district of Mynyddislwyn in the county
of Monmouth is an urban district within the meaning of
the Local Government Act 1894 and is under the management
and control of the urban district council of Mynyddislwyn which
district and council are in this Act respectively called "the
district" and "the Council":

And whereas by the Risca Urban District Council Act 1909
the urban district council of Risca (in this Act called "the
Risca Council") were authorised to supply gas within (inter
alia) so much of the district as lies to the south of the northern
boundary of the main road leading from Pontypool past Pont-
llanfraith and Tredegar Junction to Bryn:

And whereas by the Bedwellty Urban District Council Act
1912 the urban district council of Bedwellty (in this Act called
"the Bedwellty Council") were authorised to purchase the
undertaking of the Blackwood Gas Company and to supply gas
within (inter alia) so much of the district as is within the area
of supply of that company as defined in the Blackwood Gas
Act 1909 (that is to say) So much of the district as lies to the
north of the southern boundary of the said main road and to

A.D. 1913. the east of the western boundary of the road leading from Bryn to St. Sannan's Church Bedwellty :

And whereas by section 68 of the said Risca Urban District Council Act 1909 it was enacted as follows:—

If at any time after the expiration of three years from the passing of this Act the Mynyddislwyn Council shall give not less than two years' notice in writing to the Risca Council of their desire to purchase such portion of the gas undertaking (including goodwill) of the Risca Council as is contained within their district and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or the Local Government Board for power to purchase such portion of the gas undertaking and goodwill of the Risca Council (except the mains pipes or other apparatus which shall be necessary for supplying with gas any other part of the limits of the Risca Council for the supply of gas) and to supply gas within such district then it shall not be lawful for the Risca Council to oppose such application (except as to the details thereof);

and the said section made provision with respect to the determination of the price and terms and conditions upon which the said portion of the gas undertaking and goodwill of the Risca Council should be purchased:

And whereas the Council have given to the Risca Council in accordance with the provisions of the said section notice of the desire of the Council to purchase the said portion of the gas undertaking of the Risca Council:

And whereas by section 21 of the said Bedwellty Urban District Council Act 1912 it was enacted as follows:—

If the Mynyddislwyn Council shall in either of the next two available sessions of Parliament introduce and bonâ fide promote a Bill or apply to the Local Government Board for a Provisional Order authorising the Mynyddislwyn Council to supply gas within any area which shall comprise the portion of the district included within the gas limits of the Bedwellty Council as defined by that Act and to purchase so much of the gas undertaking (including mains pipes and apparatus) of the Bedwellty

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Council as shall be situate in the said portion of the Mynyddislwyn district (in that section called "the Mynyddislwyn portion of the gas undertaking") the Bedwellty Council shall not oppose any such Bill or Provisional Order except as to the details thereof and if such powers of supply and purchase be granted the Bedwellty Council shall on the twenty-ninth day of September next after the passing of such Bill or of the Bill confirming such Provisional Order or at such other date as may be agreed between the Bedwellty Council and the Mynyddislwyn Council sell and transfer to the Mynyddislwyn Council and the Mynyddislwyn Council shall purchase the Mynyddislwyn portion of the gas undertaking freed from all the then existing debentures mortgages obligations and liabilities of the Bedwellty Council;

and by the said section the consideration to be paid for the acquisition of the said portion of the gas undertaking of the Bedwellty Council was prescribed:

And whereas the respective portions of the district with which the Risca Council and the Bedwellty Council are respectively authorised to supply gas as aforesaid are together known as "the Sirhowy Valley portion of the district":

And whereas the supply of gas in the Sirhowy Valley portion of the district could be more conveniently and efficiently afforded by one undertaking in the hands of the Council than by two separate undertakings in the hands of the Bedwellty Council and the Risca Council and it is expedient that the portions of the respective gas undertakings of the Risca Council and the Bedwellty Council which are situate in the district be transferred to the Council and the Council be empowered to construct gas-works and supply gas within the Sirhowy Valley portion of the district as in this Act defined:

And whereas by the Abercarn Urban District Gas Act 1902 the Abercarn Urban District Council (in this Act called "the Abercarn Council") were authorised to supply gas within (inter alia) the parish of Mynyddislwyn which parish was at the time of the passing of the last-mentioned Act situate in the rural district of St. Mellons but now constitutes the district:

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And whereas the Abercarn Council have never afforded any supply of gas within the district nor have they constructed any gasworks therein and it is expedient that their powers of supplying gas within the district be repealed:

And whereas it is expedient that further powers be conferred upon the Council for the regulation of streets and buildings and sanitary matters and otherwise in relation to the health local government regulation and improvement of the district:

And whereas the following Acts have been adopted by the Council and are in force within the district (that is to say):—

The Public Health Acts Amendment Act 1890 Part IV.;

The Private Street Works Act 1892:

And whereas it is expedient that the Council be authorised to borrow money for the purposes of this Act and that further powers be conferred upon the Council with respect to finance:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Council for the purposes herein-after mentioned and such estimates are as follows:—

	£
For the purchase of lands and easements	- 1,150
For the erection of gasworks	- 11,150
For new gas mains and the extension of gas	
mains	- 7,520
For new services meters stoves and fittings	- 5,080

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans of the lands and other property intended to be taken or used compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and property required or which may be taken or used for the purposes or under the powers of this

Act were duly deposited with the clerk of the peace for the county of Monmouth and are in this Act referred to as the deposited plans and book of reference: A.D. 1913.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Mynyddislwyn Urban District Council Act 1913. Short title.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of Acts.

The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers) Provided that section 13 thereof shall be read as if the words "or any premises" were inserted after the words "private building":

The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof):

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires— Interpretation.

"The district" means the urban district of Mynyddislwyn;

"The Council" means the urban district council of the district;

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“The Risca Council” “the Bedwellty Council” and “the Abercarn Council” respectively mean the urban district council of Risca the urban district council of Bedwellty and the urban district council of Abercarn;

“The northern gas undertaking” means so much of the gas undertaking (including mains pipes and apparatus) of the Bedwellty Council as is situate in the district;

“The southern gas undertaking” means the portion of the gas undertaking (including goodwill) of the Risca Council which is included within the expression “the undertaking” as defined in clause 1 of the agreement set forth in the First Schedule to this Act;

“The gas limits” means the limits within which the Council are by this Act authorised to supply gas;

“The clerk” “the surveyor” “the medical officer” and “the treasurer” respectively mean the clerk the surveyor the medical officer of health and the treasurer appointed by the Council in pursuance of the powers of any public Act and “medical officer” includes any person duly authorised to act temporarily as medical officer of health;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Council;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect

of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed; A.D. 1913.

“Revenues of the Council” includes the revenues of the Council from time to time arising from any land undertakings or other property for the time being of the Council and rates or contributions leviable by or on the order or precept of the Council;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the district;

Words and expressions to which meanings are assigned by the Public Health Acts have the same respective meanings.

PART II.

PURCHASE OF GAS UNDERTAKINGS.

4.—(1) On the twenty-ninth day of September one thousand nine hundred and thirteen or at such other date as may be agreed between the Council and the Bedwellty Council (hereinafter referred to as “the Bedwellty date of transfer”) the northern gas undertaking as defined by this Act shall by virtue of this Act be transferred to and shall vest in the Council freed from all existing debentures mortgages obligations and liabilities of the Bedwellty Council. Transfer of northern gas undertaking.

(2) The Council shall pay to the Bedwellty Council as the consideration for the transfer of the northern gas undertaking—

(A) The sum of two thousand seven hundred and five pounds:

(B) A sum equal to the actual expenditure (if any) by the Bedwellty Council on the provision of new gas mains pipes and other works within the gas limits of the Council between the seventh day of August one thousand nine hundred and twelve and the Bedwellty date of transfer such expenditure to be determined in default of agreement by arbitration under this section:

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(c) Interest on the aforesaid sums (A) and (B) at the rate of four per centum per annum from the Bedwellty date of transfer to the date of payment of such sums respectively.

(3) After the Bedwellty date of transfer all rights powers and obligations on the part of the Bedwellty Council to supply gas within the district shall cease and determine except as mentioned in subsections (4) and (5) of section 21 of the Bedwellty Urban District Council Act 1912.

(4) Any dispute under this section between the Council and the Bedwellty Council shall be referred to and determined by a single arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

Transfer of
southern
gas under-
taking.

5.—(1) The agreement dated the seventeenth day of April one thousand nine hundred and thirteen and made between the Risca Council of the one part and the Council of the other part as set forth in the First Schedule to this Act is hereby confirmed and made binding on the Risca Council and the Council and may and shall be carried into effect accordingly.

(2) On the transfer day as defined in clause 1 of the said agreement (herein-after referred to as "the Risca date of transfer") the southern gas undertaking shall by virtue of this Act be transferred to and shall vest in the Council freed from all mortgages debts and incumbrances of the Risca Council.

(3) After the Risca date of transfer all powers and obligations on the part of the Risca Council to supply gas within the district shall cease and determine except that the Risca Council may supply gas in bulk to the Council in accordance with the terms of the said agreement.

Receipt for
purchase
money.

6. The receipt in writing of the treasurer of the Bedwellty Council or the Risca Council for any money paid to such council shall effectually discharge the Council from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof and if from any cause the Council are

unable to obtain such receipt from the treasurer of the Bedwellty Council or the Risca Council they may pay the money due to such council into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Council by the cashier of the said bank for the money which shall have the same effect as the receipt of the treasurer of such council.

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7. The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by the treasurer of the Bedwellty Council or the Risca Council as the case may be or in either case by the cashier of the Bank of England shall (unless it be proved that the purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Council of the northern gas undertaking or the southern gas undertaking as the case may be.

Evidence of transfer.

8. The following provisions shall have effect with reference to the respective transfers by virtue of this Act of the northern gas undertaking and the southern gas undertaking respectively (that is to say):—

Provisions affecting transfer of both undertakings.

(1) In this section the respective expressions "the transferor" "the date of transfer" and "the transferred undertaking" mean in relation to the northern gas undertaking the Bedwellty Council the Bedwellty date of transfer and the northern gas undertaking respectively and in relation to the southern gas undertaking the Risca Council the Risca date of transfer and the southern gas undertaking respectively:

Definitions.

(2) The transferor shall pay and discharge all outgoings and liabilities and shall be entitled to all rents charges and sums of money accruing due in respect of the transferred undertaking up to the date of transfer and the Council shall pay and discharge all outgoings and liabilities and shall be entitled to all rents charges and sums of money accruing due in respect of the transferred undertaking on and after the date of transfer and when necessary for the purpose of giving effect to this enactment any such outgoings

Provisions as to outgoings and receipts.

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Pending
actions.

liabilities rents charges and sums of money shall be apportioned between the transferor and the Council:

(3) If at the date of transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the transferor in respect of the transferred undertaking the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced against or in favour of the Council as and when it might have been continued prosecuted and enforced against or in favour of the transferor if this Act had not been passed but not further or otherwise:

Contracts of
transferor to
be binding
on Council.

(4) All agreements contracts conveyances deeds and other instruments affecting the transferor in respect of the transferred undertaking and in force at the date of transfer shall after the transfer be as binding and of as full force and effect against or in favour of the Council and may be enforced as fully and effectually as if instead of the transferor the Council had been a party thereto:

Rents and
charges to
continue.

(5) All rents and charges in connexion with the transferred undertaking which at the date of transfer are due or if this Act had not been passed would prior to that date have accrued due shall continue in force and be due and payable and may be collected and recovered by the transferors accordingly:

Books &c.
to remain
evidence.

(6) All books and documents in the possession of the transferor which if the transfer had not been made would have been evidence in respect of any matter for or against the transferor shall be admitted in evidence in respect of the same or the like matter for or against the Council.

PART III.

LANDS AND GASWORKS.

Power to
acquire
lands com-
pulsorily.

9. The Council may for the purposes of their gas undertaking enter upon take hold and use the lands delineated upon

the deposited plans and described in the deposited book of reference and in the Second Schedule to this Act: A.D. 1913.

Provided always that notwithstanding anything contained in this Act or shown on the deposited plans the Council shall not without the previous consent of the London and North Western Railway Company under their common seal acquire enter upon or otherwise interfere with any portion of the property numbered 4 on the deposited plans or of so much of the property numbered 3 on those plans as belongs to the said railway company.

10. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

11.—(1) If and when the Council shall have acquired the property numbered 2 on the deposited plans they may divert the public footpath crossing that property in the manner shown upon those plans and subject to the provisions of this section may stop up and cause to be discontinued as a footpath so much of the existing footpath as is situate between the points "A" and "B" shown on the said plans. Power to divert foot-path.

(2) Such stopping up shall not take place until two justices shall have certified that the new portion of footpath has been completed to their satisfaction and is open for public use and as from the date of such certificate all rights of way over or along the existing footpath between the points aforesaid shall be extinguished and the Council may appropriate for the purposes of their undertaking the site of the existing footpath as far as the same is stopped up:

Provided that the Council shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

12. All private rights of way over any lands which shall under the powers of this Part of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Council shall make full compensation to all parties interested in respect of any such rights and such As to private rights of way over lands taken compulsorily.

A.D. 1913. compensation shall in the event of difference between the parties be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Correction of errors in deposited plans and book of reference.

13. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Monmouth for the correction thereof and if it appears to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Monmouth and a duplicate thereof shall also be deposited with the clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate.

Owners may be required to sell parts only of certain premises.

14. And whereas in the exercise of the powers of this Act it may happen that portions only of the premises respectively numbered 1 and 3 on the deposited plans may be sufficient for the purposes of this Act and that such portions may be severed from the remainder of the said premises without material detriment thereto Therefore notwithstanding section 92 of the Lands Clauses Consolidation Act 1845 the owners of and other persons interested in the said premises numbered 1 and 3 may if such portions can in the opinion of the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such premises without material detriment thereto be required to sell and convey to the Council the portions only of the premises so required without the Council being obliged or compellable to purchase the whole or any greater portion thereof the Council paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

15. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of December one thousand nine hundred and twelve if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act.

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Provisions
as to com-
pensation.

16.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Council award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Council by the claimant giving sufficient particulars and in sufficient time to enable the Council to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Council had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant.

Costs of
arbitration
&c. in cer-
tain cases.

(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Council to amend the statement in writing of the claim delivered by him to the Council in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Council if they object to the amendment and such amendment shall be subject to such terms enabling the Council to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

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Powers as to
erection of
gasworks &c.

17. The Council may upon the lands described in the Second Schedule to this Act erect construct lay down provide maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers receivers and other works for the manufacture and storage of gas and for the manufacture conversion and storage of residual products resulting from the manufacture of gas and also sidings rails and other works and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas accordingly and may on the said lands make and store gas and manufacture convert and store all residual products resulting from the manufacture of gas.

For protec-
tion of
Western
Valleys
(Monmouth-
shire)
Sewerage
Board.

18. For the protection of the Western Valleys (Monmouthshire) Sewerage Board (herein-after called "the board") the following provisions unless otherwise agreed between the Council and the board shall have effect:—

- (1) It shall be lawful for the Council to lay down and place mains and pipes across the sewer of the board (whether above or under the same) provided that in so doing the Council shall not in any way injure or disturb such sewer:
- (2) The Council shall take all reasonable precautions and do and maintain all such works as may be necessary for preventing as far as reasonably practicable any injury being caused by the operations or works of the Council to the works and property of the board and shall also make good all damage which may be so caused to the reasonable requirements and satisfaction of the engineer of the board:
- (3) If the Council their agents workmen or contractors shall in the execution of any works authorised by this Act hinder or interfere with or obstruct or render more difficult or costly the construction or maintenance by the board of any works authorised by the Western Valleys (Monmouthshire) Sewerage Board Acts 1903 to 1911 the Council shall on demand pay the board such additional cost of construction or maintenance as may be reasonably required in consequence thereof:
- (4) Any dispute under this section between the Council and the board or their engineer shall be settled by a

single arbitrator who shall be appointed (unless otherwise agreed) by the President of the Institution of Civil Engineers upon the application of either party and the Arbitration Act 1889 shall apply to the arbitration.

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19. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Council any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

20. The Council may for the purposes of their gas undertaking purchase and take (by agreement but not otherwise) and may hold in addition to any other lands which the Council are by this Act authorised to acquire and hold any lands and hereditaments not exceeding in the whole five acres which the Council may require for such purposes but the Council shall not create or permit a nuisance on any such lands and no lands shall be used by the Council for the purpose of manufacturing gas or residual products except the lands described in the Second Schedule to this Act.

Purchase of additional lands by agreement.

21. The Council may purchase or take on lease houses cottages and other buildings for persons in their employ in connexion with their gas undertaking and offices and other buildings for the purposes of their gas undertaking and may erect fit up maintain and let any such building upon any lands for the time being belonging or leased to the Council for the purposes of that undertaking.

Dwelling-houses for employees offices &c.

PART IV.

SUPPLY OF GAS.

22. The limits of the Council for the supply of gas shall be the Sirhowy Valley portion of the district (that is to say) the whole of the district except the part thereof which lies to the west of the centre line of the road leading from Bryn to St. Sannan's Church Bedwellty.

Gas limits.

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Repeal of
powers of
Abercarn
Council to
supply gas
to district.

23. From and after the passing of this Act the district shall cease to be included in the limits of the Abercarn Council for the supply of gas and all powers rights authorities and privileges of or belonging to the Abercarn Council under the provisions of the Abercarn Urban District Gas Act 1902 or otherwise for or relating to the supply of gas within the district shall absolutely cease and determine except only that subject to the provisions of this Act it shall be lawful for the Abercarn Council to supply gas in bulk to the Council under and subject to the provisions of section 35 (Supply of gas in bulk) of the said Abercarn Urban District Gas Act 1902.

Restrictions
on Rhymney
and Aber
Valleys
Gas and
Water Com-
pany supply-
ing gas
within gas
limits.

24. Notwithstanding anything in section 87 of the Rhymney and Aber Valleys Gas and Water Act 1898 it shall not be lawful for the Rhymney and Aber Valleys Gas and Water Company after the passing of this Act to supply gas in bulk or otherwise within the gas limits without the consent in writing of the Council except under and subject to the provisions of section 59 of the Rhymney and Aber Valleys Gas and Water Act 1908.

Limit of
price.

25. The price to be charged by the Council for gas supplied by them to persons who shall burn the same by ordinary meter shall not at any time exceed the sum of five shillings per thousand cubic feet.

Supply of
gas where
consumer
has separate
supply.

26. Notwithstanding anything contained in the Gasworks Clauses Act 1871 or any other Act a person shall not be entitled to demand or continue to receive from the Council a supply of gas for any premises for which he has at the same time a supply of gas from any installation other than that of the Council or a supply of electricity unless he shall have agreed to pay to the Council such minimum annual sum as will give to them a reasonable return on the capital expenditure and will cover other standing charges incurred by them in order to meet the possible maximum demand for those premises and the sum to be so paid shall be determined in default of agreement by arbitration in manner provided by the Arbitration Act 1889.

Charge for
gas supplied
by means of
prepayment
meters.

27.—(1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers within the gas limits through any other kind of meter or by any other method of supply.

(2) The charge for the hire of any prepayment meter and fittings to be used therewith shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per one thousand cubic feet if such fittings include a cooking stove. A.D. 1913.

(3) The charge for the hire of any prepayment meter without fittings shall be a sum of money calculated according to the quantity of gas supplied through the prepayment meter and the maximum charge shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid or at the rate of ten per centum per annum on the cost of the meter whichever shall be the higher.

(4) The said charges shall include the providing letting fixing repairing and maintenance of the meters and fittings or of the meters (as the case may be) and the cost of collection and other costs incurred by the Council in connexion therewith.

(5) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

28. The prescribed number of candles shall be not less than fourteen. Quality of gas.

29. For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place shall be a testing place which shall be provided by the Council on any part of their gasworks before supplying or within three months after beginning to supply gas from such gasworks under the authority of this Act. Testing place.

30.—(1) The quality of the gas supplied by the Council shall with respect to its illuminating power be such as to produce at the testing place when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming 120 grains of sperm per hour and shall be in all respects in accordance with the provisions of the Gasworks Clauses Act 1871. Testing quality of gas.

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(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light Provided that the Board of Trade may on the application of the Council or any five consumers approve the use of any other burner, photometer or standard light which may appear to the Board to be equally or more suitable for the testing.

(3) The Council shall before supplying or within three months after beginning to supply gas under this Act provide all the apparatus required by this Act for the testing of gas and shall at all times keep the same in proper order and repair.

Pressure.

31.—(1) All gas supplied by the Council to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than eight-tenths of one inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at the testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied The Council shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

32. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by any circumstance beyond the control of the Council.

Power to lay pipes &c. for purposes ancillary to business of Council.

33. The Council may lay down place repair alter remove and renew mains pipes culverts and other apparatus within the gas limits for the purpose of procuring conducting or disposing of any oil or other material used by them in or resulting from the manufacture of gas or any residual products thereof or for any other purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for

the protection of pipes when laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof. A.D. 1913.

34. The Council may on the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and for that purpose the Gasworks Clauses Acts 1847 and 1871 shall apply as if the street were a street within the meaning of those Acts and dedicated to public use. Power to lay pipes in streets not dedicated to public use.

35. The following provisions for the protection of the London and North Western Railway Company (herein-after referred to as "the railway company") shall be in force and have effect:— For protection of London and North Western Railway Company.

- (1) In laying down or executing or in effecting the repairs and renewals of any mains pipes or other works upon across over under or in any way affecting the railways lands or property now or hereafter belonging to or used or occupied by the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the railway company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the railway company and only (except in cases of emergency arising from defects in any of the pipes or other works) according to such plans and in such manner as shall be previously reasonably approved by him and in all things by and at the expense of the Council who also shall restore and make good the roads over any such bridges level crossings and approaches which the railway company are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Council Provided always that if such principal engineer shall not approve or disapprove any plans or the proposed manner of doing any such work within twenty-one days after the same have been submitted to him or shall refuse or neglect for the space of seven days after being requested so to do by the Council to superintend any work the Council may proceed with

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the work without the approval of the plans and manner of doing the work and without the superintendence of the said engineer respectively:

(2) All such works matters and things shall be constructed executed and done so as not to cause any injury to such railways bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railways or at any station thereon And if any such injury or interruption shall arise from or be in any way owing to any of the acts operations matters and things aforesaid or the bursting leakage or failure of any such mains pipes or works the Council shall make compensation in respect thereof to the said railway company:

(3) Any dispute or difference which may arise between the railway company and the Council with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the railway company and the Council or either of them and the Arbitration Act 1889 shall apply to the arbitration.

For protection of Abertillery and District Water Board.

36. For the protection of the Abertillery and District Water Board (in this section referred to as "the board") the following provisions shall (unless otherwise agreed in writing between the board on the one hand and the Council on the other hand) have effect (that is to say):—

Before the Council shall commence to lay or place any mains or pipes other than service pipes in any street or road within the gas limits as regards which the board shall have given notice in writing to the Council of the existence therein of mains pipes culverts valves hydrants syphons plugs or other works (in this section referred to as "apparatus") of the board they shall deliver to the board for the approval of the engineer of the board plans and sections showing the position in which it is proposed to lay or place such mains or pipes and if such engineer shall signify his approval of such plans and

sections or shall fail for a period of fourteen days after A.D. 1913.
such submission to signify his approval or disapproval
thereof the work shall be carried out by the Council in
accordance with such plans and sections Provided that if
such engineer within the said period shall have expressed
his disapproval of the said plans and sections the Council
shall not commence to lay or place such mains or pipes
unless and until plans and sections showing the position
in which such mains or pipes are to be laid shall have
been settled by an engineer to be agreed upon or failing
such agreement to be appointed upon the application of
either of the parties in difference by the President of the
Institution of Civil Engineers.

37. Notwithstanding anything in this Act or the Acts incor- Provisions as
porated therewith the provisions of sections 11 12 24 to 34 36 to charges
and 37 of the Gasworks Clauses Act 1871 shall not apply to &c. and
the Council in respect of gas supplied by them for utilisation conditions in
for power (herein-after called "power gas") and the provisions respect of
of this Act with respect to the illuminating power pressure or gas supplied
purity of gas supplied by the Council and the testing thereof for power.
or with respect to the price of gas shall not be applicable in
respect of power gas supplied by the Council or to the Council
in respect of power gas and the Council may charge in respect
of power gas supplied to the occupier of any premises within
the gas limits such sums as may be agreed between the Council
and such occupier as aforesaid.

38.—(1) It shall not be lawful for the Council at any Conditions
time to supply power gas which does not possess a distinctive as to quality
and readily perceptible smell. of power gas
supplied.

(2) For every contravention of this section the Council
shall be liable on summary conviction to a fine not exceeding
fifty pounds.

(3) It shall be the duty of the inspectors of factories and
the inspectors of mines to enforce the provisions of this section
within their district so far as respects factories workshops and
mines inspected by them respectively and such inspectors shall
for this purpose have all powers and authorities conferred by
section 119 of the Factory and Workshop Act 1901 and by
section 98 of the Coal Mines Act 1911 and section 17 of the
Metalliferous Mines Regulation Act 1872 respectively.

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Provided that no proceedings shall be taken against the Council by any such inspector in respect of any contravention of the provisions of this section discovered by him on any inspection of a factory workshop or mine unless he shall have given notice in writing to the Council at their principal office of such contravention and of the nature of the contravention as soon as possible after he discovers the same.

Power gas
not to be
supplied for
illumination.

39. The Council shall not supply power gas for the purpose of illumination and no power gas supplied by the Council shall be used for that purpose.

If any person supplied by the Council with power gas shall use the same for the purposes of illumination the Council shall forthwith upon becoming aware thereof discontinue the supply.

If the Council act in contravention of the provisions of this section they shall for every such offence be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Home Secretary may
make regulations as to
supply of
power gas.

40.—(1) The Secretary of State for the Home Department may at any time either before or after the Council shall have commenced to give a supply of power gas to consumers (after holding such inquiries as he may think fit and considering any representations made to him by the Council) make or impose in the interests of safety to persons regulations terms and conditions with respect to such supply.

(2) The Council shall not under the powers of this Act supply or continue to supply power gas otherwise than in accordance with any regulations and upon and subject to any terms and conditions which shall have been so made or imposed and shall for the time being be in force. Provided that if in the opinion of the Council compliance with any such regulations terms and conditions would render the supply or continued supply of power gas by them unremunerative or impracticable it shall be lawful for the Council upon giving to all consumers of power gas supplied by them not less than three months' notice of their intention so to do to discontinue such supply and in that event the Council shall not be under any obligation to supply or to continue to supply power gas to any person.

(3) For every contravention of this section the Council shall be liable on summary conviction to a fine not exceeding fifty pounds. A.D. 1913.

(4) For the purpose of enforcing this section or for the purpose of any inquiry by the said Secretary of State thereunder inspectors of factories and inspectors of mines shall have such and the like powers and authorities as are conferred by the enactments referred to in the section of this Act the marginal note whereof is "Conditions as to quality of power gas supplied."

41. Nothing in this Act contained shall exempt the Council from the provisions of any general Act relating to the manufacture or supply of power gas passed before or after the passing of this Act or from any regulations which may be made under any such general Act. Provision as to general Acts relating to power gas.

42. In order to enable the Council to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:— As to construction and placing of pipes &c. between mains and meters.

- (1) The Council may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer on his own premises beyond the meter either in the first instance or on the occasion of any renewal so far as such pipes and fittings are intended to be covered over:
- (2) The Council may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper (or once in each of two newspapers) circulating within the gas limits and a copy thereof shall be kept exhibited in the office of the Council:
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Council's main but within the outside wall of the building:

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(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Council and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Council. Any officer of the Council duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Council's specification or if the meter is not placed as required by this section the Council may refuse to supply gas to the premises until the provisions of this section have been complied with:

(6) Any person to whom the Council refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Council's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Council to
pay interest
on money
deposited as
security for
gas meter.

43. If any person is required by the Council to give to them security for any supply of gas or for the payment of the price or rent of a meter and such security is made by way of deposit the Council shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to
supply gas
fittings.

44.—(1) The Council may purchase sell let for hire fix repair and remove but shall not manufacture engines stoves ranges pipes and other fittings for lighting motive heating ventilating cooking or any other purposes and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon.

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(2) The Council shall not themselves lay any pipes on the consumer's premises except between the main of the Council and the consumer's meter but they may enter into contracts for the execution of any of the powers of this section including the laying of pipes on the consumer's premises provided that the contractor acts independently of the Council in the execution of the contract. The Council shall not sell any such gas fittings as aforesaid except through a contractor carrying on his business independently of the Council.

Provided as follows:—

(A) The Council shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet the costs and expenses incurred by them under the powers of this section in connexion therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(B) Every sum charged by the Council to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Council to the consumer:

(c) The total sums expended or incurred and received by the Council in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the gas undertaking of the Council for that year.

45.—(1) Subject to the provisions of subsection (3) hereof any fittings let by the Council on hire under the provisions of this Act shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or proceedings in bankruptcy against the persons in whose possession the same may be.

Fittings not to be subject to distress and though fixed to premises to remain property of Council.

(2) Subject to the provisions of subsection (3) hereof all fittings let by the Council on hire as aforesaid shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under

A.D. 1913. any such premises at all times continue to be the property of and removable by the Council. Provided that nothing in this subsection shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

(3) The Council shall only be entitled to the privileges and exemptions conferred by this section in respect of such fittings as shall have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Council as the actual owners thereof.

Gas consumers to give notice to Council before removing.

46. At least twenty-four hours' notice shall be given to the Council by every gas consumer either personally at the office of the Council or in writing before he shall quit any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas charges payable to the Council.

Power to refuse supply to persons in debt for other premises.

47. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

48. A notice to the Council from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Council or be given by the consumer personally at the office of the Council.

Power to enter premises and remove fittings.

49. The power to enter premises and to remove pipes meters fittings or apparatus conferred upon the Council by section 22 of the Gasworks Clauses Act 1871 shall extend to all cases in which any person entering into occupation of any premises previously supplied with gas by the Council shall not

require to take a supply of gas from the Council or to hire from the Council all or any of the pipes meters fittings or apparatus belonging to the Council and let by them on hire to any former occupier of such premises. A.D. 1913.

50.—(1) Every consumer of gas supplied by the Council who uses a gas engine shall if required to do so by the Council use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Council may cease to supply him with gas. Power to require use of anti-fluctuators for gas engines.

(2) The Council shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Council if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

51. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Council shall be paid by or to the Council to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Council. Period of error in defective meters.

52. The Council may contract with any local authority company or persons authorised to supply gas under parliamentary powers in any district adjacent to the gas limits for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon but nothing in this section shall authorise the Council to lay any mains or interfere with any street beyond the district. Council may contract with local authority for supply in bulk.

53. Subject to the provisions of this Act the Council may enter into and carry into effect agreements with any local authority company or person within or beyond the gas limits Power to take a supply of gas in bulk.

A.D. 1913. for the purchase by the Council of gas in bulk for the purposes of this Act but nothing in this section shall authorise the Council to lay any mains or interfere with any street outside the district.

Power to hold licences under letters patent.

54. The Council may take hold and use patent rights and licences or authorities (not being exclusive) under any letters patent for the use of any invention relative to the manufacture of gas or of the residual products herein-before mentioned.

Differences with road authorities or railway or other companies.

55. If any difference arise between the Council and any road authority or railway canal or other company whose lands or works the Council have power to cross under the authority of this Part of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

PART V.

STREETS BUILDINGS AND DRAINS.

Continuation of existing streets to be deemed new streets.

56. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the district be deemed to be a new street.

No building allowed until street defined.

57.—(1) No person except with the consent of the Council shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Further provisions as to new streets and widenings.

58. When a road or lane is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street is about to be built on the Council may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the byelaws

in force in the district require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land. Provided that when the land on the opposite side of such road or lane is about to be built on the Council shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Council and the said owner shall complete the same accordingly. A.D. 1913.

The provisions of this section shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by the London and North Western Railway Company as a part of or in connexion with their railway under any Act of Parliament nor to any land upon which any such building is erected or is in course of being erected.

59.—(1) The owners or occupiers of all lands shall construct such works as may be necessary for the purpose of preventing as far as reasonably practicable the soil sand and other débris of such lands from falling upon or being washed or carried into any street repairable by the inhabitants at large or into any sewer or gully in such quantities as will flood the houses in such street or obstruct or choke up such sewer or gully. For preventing soil sand and other débris from being washed into streets.

(2) If any person shall for one month after notice in writing from the Council fail in any respect to comply with the provisions of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

60. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Council may determine to be dangerous or an obstruction to the safe or convenient use of any street. Prevention and removal of projections over streets.

61.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Council may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub Trees or shrubs overhanging streets and footpaths.

A.D. 1913. is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Council may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Council under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such notice provided he gives written notice of such appeal and the grounds thereof to the clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Council under this section.

Erection of
buildings
to greater
height than
adjoining
buildings.

62.—(1) In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall or against the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Means of
escape from
buildings in
case of fire.

63.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Council shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The means of escape provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings. A.D. 1913.

64. The Council may make byelaws with respect to the materials with which new buildings shall be constructed and the manner in which and the materials with which grates stoves and fire-places shall be set in new buildings and the thickness and construction of the walls of all ovens and furnaces wholly or partially built after the passing of this Act. Byelaws as to building materials.

65.—(1) Whenever any person erecting any building shall be desirous of leaving an opening which may be a source of danger to the public or of placing any steps or other projection in any forecourt area or space left in front of such building such forecourt area or space shall if required by the Council be well and sufficiently fenced off from the footpath or street. Forecourts to be fenced off from streets.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

66.—(1) The Council may by notice in writing require the owner or occupier of any dwelling-house to provide galvanized or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Council. Regulation dustbins.

(2) Any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Council shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

(3) Provided that this section shall not authorise the Council to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition.

67. The Council may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may Power to lay drains in private streets.

A.D. 1913. be done in the execution of such powers such compensation to be ascertained by and recovered before a court of summary jurisdiction.

Notice of
intention to
repair drains.

68.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Council without giving to the Council or the surveyor twelve hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Council authorised in writing by the clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Sanitary
conveniences
for workmen
engaged on
buildings.

69.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building shall where practicable provide to the reasonable satisfaction of the Council and until the completion of any such work or operation sufficient water or other closets and urinals.

(2) Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Penalty on
occupiers
refusing
execution
of Act.

70. If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Council under this Part of this Act or under any byelaw made thereunder then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Council to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding forty shillings and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

71. The provisions of this Part of this Act shall not extend or apply to any building (not being a dwelling-house) belonging to and used and occupied by a railway company as a part of or in connexion with their railway under any Act of Parliament.

A.D. 1913.
Exemption
of buildings
of railway
companies.

PART VI.

INFECTIOUS DISEASE AND OTHER PROVISIONS.

72. If any dairyman shall at the request of the Council stop his milk supply within the district on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the district the Council may make compensation to him for any loss occasioned by such stoppage.

Compensa-
tion to
dairymen.

73. If any person shall at the request of the Council or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Council may make compensation to him for any loss he may sustain by reason of such stoppage.

Compensa-
tion to
persons
ceasing em-
ployment.

74.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be fur-
nished to
medical
officer and
penalty for
furnishing
false infor-
mation.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

75.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who—

For regu-
lating manu-
facture and
sale of ice
cream.

(A) Causes or permits ice cream or other similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room

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or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Council shall compensate the owner of the ice cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow or other vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) Any officer duly authorised by the Council in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Council would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned and any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Prohibiting
sale &c. of
articles of

76.—(1) It shall not be lawful for any collector of or dealer in rags or bones or similar articles or any person carrying on the

business of rag and bone merchant or any person acting on behalf of any such person as aforesaid to sell or distribute within the urban district any articles of food for human consumption from any cart barrow or other vehicle used for the collection of rags bones or similar articles or in or from any shop or premises used for or in connexion with the business of rag and bone merchants.

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food for
human con-
sumption by
rag and bone
dealers.

(2) Every person offending against this enactment shall be liable for each offence to a penalty not exceeding five pounds.

77.—(1) It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the district.

Prohibition
of blowing
or inflating
carcases.

(2) Any person who shall offend against the provisions of subsection (1) of this section or shall expose or deposit for sale within the district a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

78. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Provisions
as to houses
without
water
supply.

79.—(1) At any time after the passing of this Act the Council may—

Slaughtering
prohibited
except in
Council
slaughter-
houses when
provided.

(A) Acquire by agreement any premises within the district used for the purpose of slaughtering cattle (hereinafter referred to as a “slaughter-house”) and the interest or interests of any owner lessee and occupier of such premises :

(B) Agree with the owner lessee and occupier of any slaughter-house for the abolition of slaughtering therein on such terms and conditions as may be arranged between the parties.

(2) At any time after the expiration of three years from the passing of this Act and after the Council have provided adequate slaughter-houses in convenient positions (to the satisfaction of the Local Government Board) and after the expiration of six calendar months from the date of publication by the

A.D. 1913. Council in a local newspaper circulating in the district of notice to that effect no person shall slaughter in the way of trade any cattle within the district except in slaughter-houses provided by the Council but this shall not apply to the slaughtering on premises by the owner lessee or occupier thereof of any cattle belonging to him and not slaughtered for the purpose of trade and if any person acts in contravention of this section he shall be liable for each offence to a penalty not exceeding five pounds :

Provided that nothing in this section shall prevent a farmer from slaughtering on land occupied by him for agricultural purposes only any cattle belonging to him but no part of the carcase of any animal so slaughtered by a farmer shall be removed from the farm until after inspection by the medical officer or the inspector of nuisances such inspection to be made within a reasonable time.

(3) The Council shall pay compensation to the owner lessee and occupier of every slaughter-house who may be injuriously affected by the exercise of the above powers or who may agree to discontinue as a slaughter-house any building owned leased or occupied by him and the amount of such compensation shall in case of difference be settled as cases of disputed compensation are settled under the Lands Clauses Acts and the provisions of those Acts shall apply accordingly.

(4) The fees and charges to be demanded and received by the Council in respect of the use of any slaughter-house provided by them or of any convenience connected therewith shall be regulated by byelaws to be approved by the Local Government Board and the Council may make byelaws accordingly.

(5) Nothing in this section shall interfere with the operation or effect of the Diseases of Animals Act 1894 or of any order or licence of the Board of Agriculture and Fisheries made or granted thereunder.

(6) In this section the word "cattle" shall include sheep goats and swine.

Public notice
to be given
of provisions
of this Part
of Act.

80.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the district and by a notice affixed outside the Council

offices and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained. A.D. 1913.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART VII.

FINANCIAL PROVISIONS.

81.—(1) The Council may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):— Power to borrow.

- (A) For the purchase of the northern gas undertaking and the southern gas undertaking and for paying any sums payable by the Council to the Bedwellty Council under the section of this Act of which the marginal note is "Transfer of northern gas undertaking" and to the Risca Council under the agreement set forth in the First Schedule to this Act and for defraying the costs charges and expenses incident to such purchases and to the transfer of such undertakings to the Council (other than the costs of this Act) such sum or sums as may be necessary:
- (B) For and in relation to the purchase of lands and easements the sum of one thousand one hundred and fifty pounds:
- (C) For the works authorised by the section of this Act of which the marginal note is "Powers as to erection of gasworks &c." the sum of eleven thousand one hundred and fifty pounds:
- (D) For new gas mains and the extension and improvement of gas mains the sum of seven thousand five hundred and twenty pounds:
- (E) For new services meters stoves and fittings the sum of five thousand and eighty pounds:
- (F) For working capital the sum of one thousand pounds:
- (G) For paying the costs charges and expenses of this Act the sum requisite for that purpose.

A.D. 1913.

(2) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge in the case of moneys borrowed for the purposes (A) (B) (C) (D) (E) and (F) before mentioned the revenue of the gas undertaking and if they think fit as a collateral security the district fund and general district rate and in the case of money borrowed for the purpose (G) before mentioned the district fund and general district rate. Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

Power to borrow additional moneys with consent of Local Government Board.

82. The Council independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow at interest such further moneys as may be required for the further extension and improvement of and any other purposes of the gas undertaking on the security of the revenue of the gas undertaking and if they think fit as a collateral security the district fund and the general district rate and for any other of the purposes of this Act on the security of the district fund and general district rate. Provided that the provisions of this section shall not limit the powers conferred upon the Council by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

Certain provisions of Public Health Act not to apply.

83. In calculating the amount which the Council may borrow under the provisions of the Public Health Acts any sums which the Council may borrow under or for the purposes of this Act shall not be reckoned and the power of the Council of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Mode of raising money.

84. The Council may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of sections 15 and 16 of that Act.

85. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply in the case of all mortgages granted by the Council under this Act as if they were with necessary modifications re-enacted in this Act.

A.D. 1913.
 Provisions
 as to mort-
 gages.

86.—(1) Any mortgagee of the Council by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver:

Appoint-
 ment of
 receiver.

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

87. A person lending money to the Council shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or any part thereof.

Protection
 of lenders
 from inquiry.

88. The Council shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed periods") following (that is to say):—

Periods for
 repayment
 of moneys
 borrowed.

As to moneys borrowed for the purposes (A) mentioned in the section of this Act the marginal note whereof is "Power to borrow" within thirty-five years from the date or dates of borrowing the same:

As to moneys borrowed for the purpose (B) in the said section mentioned within sixty years from the date or dates of borrowing the same:

As to moneys borrowed for the purpose (C) in the said section mentioned within forty years from the date or dates of borrowing the same:

As to moneys borrowed for the purpose (D) in the said section mentioned within thirty years from the date or dates of borrowing the same:

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As to moneys borrowed for the purpose (E) in the said section mentioned within twenty years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (F) in the said section mentioned within ten years from the date or dates of borrowing the same :

As to moneys borrowed for the purpose (G) in the said section mentioned within five years from the date of the passing of this Act :

As to moneys borrowed with the approval of the Local Government Board within such period not exceeding sixty years as that Board may think fit to sanction.

Mode of
payment off
of money
borrowed.

89. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

90.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Council being at liberty from time to time to vary and transpose such investments. A.D. 1913.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Council in addition to the payments provided for by this Act.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking

A.D. 1913. fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Council with the consent of the Local Government Board may determine.

Power to
invest all
sinking
funds in
statutory
securities.

91. When under the provisions of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed confirmed or made before or after the passing of this Act the Council are empowered or required to form a sinking fund for the payment off of money borrowed or

payable by them they may (in addition to any other powers for the time being vested in them) invest such sinking fund and the interest on the investments of such sinking fund in statutory securities. A.D. 1913.

92.—(1) Where the Council are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

(A) A loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to have been raised in exercise of a particular borrowing power specified therein; or

(B) Moneys borrowed and charged upon all the revenues of the Council in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to have been raised in exercise of a particular borrowing power specified therein.

(2) The Council when exercising the powers conferred on them by this section shall—

(A) Withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of money from such sinking fund:

(B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund:

(C) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal money equal to the sum withdrawn from

A.D. 1913.

such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Council shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

As to temporary borrowing.

93.—(1) The Council may from time to time for the purpose of providing temporarily during any financial year for their current expenses as a sanitary or road authority (whether under the provisions of public general or local Acts) borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in the aggregate at any time one-fourth of the amount of such expenses on revenue account during the immediately preceding financial year.

(2) Any sums borrowed under this section together with the interest thereon shall form a charge upon the district fund and general district rate *pari passu* with any bond mortgage or other securities affecting the same.

(3) It shall further be lawful for the Council to utilise for providing temporarily for any such expenses any sinking funds which they may have on hand crediting the said sinking funds with such fair rate of interest not being less than three per centum per annum as they may resolve.

(4) All sums borrowed under this section together with the interest thereon shall be repaid out of the district fund or general district rate within the financial year during which the same was borrowed.

(5) When the Council borrow money under this section—

(A) The clerk shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such

year and such report shall be in such form and shall contain such information as that Board shall approve or require: A.D. 1913.

- (B) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the report of the clerk or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(6) The provisions of this section shall cease to be in force at the expiration of ten years from the thirty-first day of March one thousand nine hundred and thirteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

94.—(1) The Council shall have power—

Power to
re-borrow.

- (A) To borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (B) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period

A.D. 1913. prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) By instalments or annual payments; or

(B) By means of a sinking fund; or

(C) Out of moneys derived from the sale of land; or

(D) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Power to
use one
form of
mortgage
for all
purposes.

95.—(1) Where the Council have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be sealed with the common seal of the Council and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Council.

(5) Nothing in this section contained shall alter or affect the obligations of the Council to provide for the repayment of the principal sums and interest secured by mortgages granted

under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted. A.D. 1913.

(6) There shall be kept at the office of the Council a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Council a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Council shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

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(10) If the clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Council not
to regard
trusts or
bound to
see to appli-
cation of
moneys.

96. The Council shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan borrowed granted or issued by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall from time to time be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered on their register.

Return
respecting
sinking fund
to Local
Government
Board.

97.—(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest have been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the

making of the return shall be enforceable by writ of Mandamus A.D. 1913.
to be obtained by the Local Government Board out of the
High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

98. All expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are otherwise provided for) shall be paid out of the district fund or general district rate Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable. Expenses of
executing
Act.

99.—(1) The Council may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for
fixing
equated
periods.

(2) No scheme made by the Council under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be

A.D. 1913. within the powers of this Act Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock existing at that time except with the consent of such mortgagee or holder.

(3) The Council may with the sanction of the Local Government Board and on the security of the revenues funds or rates respectively on the security of which the moneys included in the scheme were respectively authorised to be borrowed borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Council for their consent thereto and any moneys so borrowed shall be repaid within such period as the Local Government Board may sanction.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

Application
of money
borrowed.

100. All money borrowed under the provisions of this Act shall be applied only to the purposes for which it is authorised to be borrowed and (except in the case of money borrowed for working capital or for current expenses) to which capital is properly applicable Provided that moneys which may have been borrowed in excess of the amount required shall be paid into the sinking fund or shall be applied in such manner as the Council with the consent of the Local Government Board determine.

Proceeds of
sale of sur-
plus lands.

101. The proceeds of the sale of any lands or other property of the Council under the powers of this Act and the fines and premiums on any leases granted by the Council under this Act shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of any moneys borrowed by the Council under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Council but shall not be applied to the payments of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such sums shall not be re-borrowed.

102. The Council shall keep separate accounts of their receipts and expenditure on capital and revenue account for the purposes of their gas undertaking.

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Council to keep separate accounts of gas undertaking.

103. Section 58 of the Local Government Act 1894 shall apply to the accounts of the Council and their committees and officers under this Act and to the audit of such accounts.

Audit of accounts.

104.—(1) The Council shall apply all moneys received by them on revenue account in respect of their gas undertaking in manner and in the order following (that is to say):—

Application of revenue and deficiency of receipts in respect of gas undertaking.

(First) In payment of the working and establishment expenses and cost of maintenance of the undertaking;

(Secondly) In payment of the interest on moneys borrowed for the purposes of the undertaking;

(Thirdly) In providing the requisite appropriations or instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking;

(Fourthly) In extending and improving (if the Council think fit) any works for the purposes of the undertaking;

(Fifthly) In providing a reserve fund (if the Council think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Council not exceeding a sum equal to one-fifth of the aggregate capital expenditure for the time being by the Council upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Council from the undertaking or to meet any extraordinary claim or demand at any time arising against the Council in respect of the undertaking or for payment of the cost of renewing any part of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens. Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

A.D. 1913. And the Council shall carry to the district fund so much of any balance remaining in any year of the money so received (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Council not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the gas undertaking of the Council shall be made good out of the general district rate within twelve months after the deficiency is ascertained.

PART VIII.

MISCELLANEOUS.

Power to
retain sell
&c. lands.

105. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Council not
liable for
damages
save in case
of negli-
gence.

106. Whenever the Council under any enactment or byelaw for the time being in force within the district execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Council or any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expenses payable by such owner or occupier and shall be recoverable accordingly.

Inquiries by
Local
Government
Board.

107.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem

necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. A.D. 1913.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

108. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid and made by an officer of the Council authorised in that behalf or by the clerk. Informations by whom to be laid.

109.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district requires authentication by the Council the signature of the clerk or other duly authorised officer of the Council shall be sufficient authentication. As to notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the district may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

110. Where in any legal proceedings taken by or on behalf of the Council under this Act or under any general or local Act for the time being in force in the district it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Council or of any committee of the Council or to prove any resolution of the Council or of any committee of the Council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the chairman of the Council or the clerk shall be Evidence of appointments authority &c.

A.D. 1913. — prima facie evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Confirmation of byelaws. **111.** The provisions of sections 182 to 186 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Council under the powers of this Act.

As to appeal. **112.** Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence consent or approval of or by the Council or of or by any officer or valuer of the Council or by any conviction or order by a court of summary jurisdiction under any provision of this Act may (if no other mode of appeal is provided by this Act) appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts.

Recovery of penalties &c. **113.** Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery of demands. **114.** Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Damages and charges to be settled by justices. **115.** Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses costs or charges in case of dispute respecting the same may be settled and determined by a court of summary jurisdiction before whom any offender is convicted.

Penalties to be paid over to treasurer. **116.** All penalties recovered by the Council or any officer of the Council on their behalf whether under this Act or any byelaw thereunder shall be paid to the treasurer and shall be

carried by him to the credit of the district fund or to such other fund as the Council direct. A.D. 1913.

117. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided for by the Public Health Acts. Determination of compensation.

118. No matter or thing done or contract entered into by the Council nor any matter or thing done by the clerk or by any member or officer of the Council or any person whomsoever acting under the direction of the Council shall if the matter or thing be done or the contract be entered into bona fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Council or clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Council. Persons acting in execution of Act not to be personally liable.

119. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving for indictments.

120. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate. Judges not disqualified.

121. All the powers rights and remedies given to the Council by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Council or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

A.D. 1913.

Saving
Crown
rights.

Costs of Act.

122. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

123. The costs charges and expenses preliminary to and of and incidental to the preparing of applying for and obtaining and passing of this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1913.

THE FIRST SCHEDULE.

AN AGREEMENT made the seventeenth day of April one thousand nine hundred and thirteen between THE URBAN DISTRICT COUNCIL FOR THE URBAN DISTRICT OF RISCA herein-after called the Vendors of the one part and THE URBAN DISTRICT COUNCIL FOR THE URBAN DISTRICT OF MYNYDDISLWYN herein-after called the Purchasers of the other part.

WHEREAS under and by virtue of the Risca Urban District Council Act one thousand nine hundred and nine the gas and water undertakings of the Western Valleys (Monmouthshire) Water and Gas Company were transferred to and became vested in the Vendors:

And whereas under and by virtue of the said Act the Vendors were authorised to supply gas within the limits defined by section 45 of such Act viz. The whole of the urban district of Risca and so much of the urban district of Mynyddislwyn herein-after referred to as "the Mynyddislwyn district" as lies to the south of the northern boundary of the main road leading from Pontypool past Pontllanfraith and Tredgar Junction to the point where such main road crosses the road leading from Bryn to Sannan's Church Bedwellty:

And whereas by the said section of the said Act it was provided that if the Vendors were not supplying gas within the Mynyddislwyn district within three years after the passing of the said Act the powers of the Vendors to supply gas in the Mynyddislwyn district should cease and determine:

And whereas the Vendors were within three years after the passing of the said Act and still are supplying gas within the Mynyddislwyn district:

And whereas by section 68 of the said Act it was provided as follows "If at any time after the expiration of three years from the
" passing of this Act the Mynyddislwyn Council (meaning the Pur-
" chasers) shall give not less than two years' notice in writing to the
" Council (meaning the Vendors) of their desire to purchase such
" portion of the gas undertaking (including goodwill) of the Council
" as is contained within their district and shall obtain the consent of
" the Local Government Board to such purchase and shall apply to
" Parliament or the Local Government Board for power to purchase
" such portion of the gas undertaking and goodwill of the Council

A.D. 1913. “ (except the mains pipes or other apparatus which shall be necessary
“ for supplying with gas any other part of the limits of the Council
“ for the supply of gas) and to supply gas within such district then
“ it shall not be lawful for the Council to oppose such application
“ (except as to the details thereof) and if such powers of purchase
“ and supply be granted the Council shall sell and the Mynyddislwyn
“ Council shall purchase the said portion of the gas undertaking and
“ goodwill of the Council (except as aforesaid) within the district of
“ the Mynyddislwyn Council at such price being a sum in gross and
“ upon such terms and conditions as shall be fixed in default of
“ agreement by arbitration under the provisions of the Lands Clauses
“ Acts Provided that the arbitrators or umpire as the case may be
“ shall make no allowance for prospective profit Any such purchase
“ shall be deemed to be a purpose of the Public Health Act 1875
“ except so far as the same may be otherwise provided for by Parlia-
“ ment The Council shall apply the proceeds of any sale under this
“ section in the same manner as they are required to apply money
“ received from sales of land under this Act Provided that after the
“ completion of such purchase all powers and obligations on the part
“ of the Council to supply gas within the district of the Mynyddislwyn
“ Council shall cease and determine”:

And whereas by section 58 of the said Act the Vendors are empowered to contract with any local authority or person supplying gas under parliamentary powers in any district adjacent to the Vendors' limits of supply for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as may be agreed upon:

And whereas by a notice dated the seventeenth day of August one thousand nine hundred and twelve under the hand of Trevor C. Griffiths their clerk the Purchasers gave notice to the Vendors of their desire to purchase after the expiration of two years from that date such portion of the gas undertaking of the Vendors (including goodwill) as was contained within the Mynyddislwyn district:

And whereas the Purchasers are applying in the present session of Parliament for a Bill for the purpose (inter alia) of transferring to them such portion of the gas undertaking (including goodwill) of the Vendors as is contained within the Mynyddislwyn district:

And whereas the Vendors have agreed to sell and the Purchasers have agreed to purchase such portion of the said gas undertaking upon the following terms and conditions:

Now it is hereby agreed as follows:—

1. “The undertaking” shall mean the mains pipes meters stoves cookers fittings and other apparatus the property of the Vendors laid

A.D. 1913.

placed or fixed by the Vendors within the Mynyddislwyn district for the supply or use of gas together with the goodwill of such part of the gas undertaking of the Vendors as is contained in the Mynyddislwyn district and all easements rights powers authorities and privileges enjoyed or exerciseable by the Vendors in connexion with the supply of gas within the Mynyddislwyn district as such mains pipes meters stoves cookers fittings apparatus goodwill easements rights powers authorities and privileges shall exist on the transfer day as herein-after defined and all contracts and agreements and the benefit of all contracts and agreements existing on the transfer day and relating to the supply of gas by the Vendors within the Mynyddislwyn district.

"The transfer day" means the first day of October or the first day of April which shall first happen next after the date on which the said Bill shall receive the Royal Assent.

"Year" means a period of twelve calendar months during the continuance of this agreement commencing on the transfer day or any anniversary thereof.

"Quarter" means a period of three calendar months during the continuance of this agreement commencing on any first day of January first day of April first day of July or first day of October.

"Month" means calendar month.

2. The Vendors shall sell and the Purchasers shall purchase the undertaking freed from all mortgages debts and incumbrances for the consideration and upon the terms and conditions herein-after contained.

3. The consideration for the said sale shall be—

(A) The sum of 16,308*l.* 7*s.* 1*d.* and in addition thereto the amount of the expenditure incurred by the Vendors on pipes mains stoves cookers meters fittings and other apparatus within the Mynyddislwyn district for the supply of gas between the thirty-first day of March one thousand nine hundred and thirteen and the transfer day:

(B) The agreement of the Purchasers to take a supply of gas in bulk as herein-after mentioned.

4. The undertaking shall be transferred from the Vendors to the Purchasers on the transfer day and on such day the Purchasers shall pay to the Vendors the said sum of 16,308*l.* 7*s.* 1*d.* and the amount of the expenditure referred to in paragraph 3 (A) hereof.

5. The expenditure referred to in paragraph 3 (A) hereof shall be ascertained from the books of the Vendors by the respective clerks to the Vendors and the Purchasers or failing agreement between them by Mr. Charles Frederic Spencer of York Chambers Halifax or failing

A.D. 1913. him by some other person to be appointed in default of agreement between the Vendors and Purchasers by the Local Government Board.

6. The Vendors shall unless prevented by storm or tempest or any other unavoidable cause or accident or during strikes or lock-outs give and the Purchasers shall take for a period of seven years from the transfer day a supply of gas in bulk (of not less in any one year than seven million cubic feet) which shall be paid for at the rate of three shillings per thousand cubic feet or fraction of one thousand cubic feet. Provided that if in any year the quantity of gas taken by the Purchasers shall be less than seven million cubic feet the Purchasers shall be deemed to have taken during such year and shall pay for a minimum quantity of seven million cubic feet. Provided that if the Vendors shall make default in the supply of gas under this agreement during any part of a year the minimum quantity of gas to be taken or deemed to have been taken and to be paid for for that year shall be such quantity as shall bear to seven million cubic feet the same proportion as such part of the year bears to the whole year and in respect of the part of a year during which the Vendors shall so make default the Purchasers shall only be liable to pay the Vendors for such quantity of gas as shall have been actually supplied to the Purchasers.

7. On the expiration of each of the first three quarters in each year or within thirty days thereafter the Purchasers shall pay to the Vendors one-fourth of the amount payable for the minimum quantity of gas hereby agreed to be taken during such year. If the quantity of gas supplied during any of such three quarters shall exceed the quantity so to be paid for in respect of such quarter the Purchasers shall pay for such excess within thirty days after receiving an account thereof from the Vendors. Upon the expiration of each year the Vendors shall deliver to the Purchasers an account stating the amount payable for the gas supplied or which ought to have been taken during such year and the amount already paid by the Purchasers in respect of the first three quarters of such year and the Purchasers shall within thirty days after delivery of the said account pay to the Vendors the amount shown to be due by such account.

8. During the said period of seven years the Purchasers shall take from the Vendors and the Vendors shall supply all gas required by the Purchasers up to twelve million cubic feet in any one year for supply within such portion of the Mynyddislwyn district as is situate to the south of a line drawn due east and west from the north-west corner of enclosure numbered 1685 on the $\frac{1}{2500}$ Ordnance map (Monmouthshire) XXVII. 3 2nd edition 1901. Provided that it shall not be obligatory on the Purchasers to purchase from the Vendors any gas in excess of seven

million cubic feet in any one year if the Purchasers shall erect works for the manufacture of gas and shall manufacture under the powers of the said Bill all the gas they require in any one year between seven and twelve million cubic feet for supply within the said portion of the said district. A.D. 1913.

9.—(A) The gas to be supplied by the Vendors to the Purchasers shall pass through a meter or meters to be provided by and at the cost of the Vendors at a point at or near the boundary of the districts of the Vendors and Purchasers at Wattsville within the district of the Vendors. Such meter or meters and the meter house shall be the property of the Vendors but any officer appointed by the Purchasers shall at all reasonable times be entitled on giving twenty-four hours' previous notice to the Vendors to enter the meter house and inspect the meter or meters and apparatus connected therewith for the purpose of ascertaining the quantity of gas so supplied.

(B) The said meter or meters shall be read on the first day of each and every month in each and every year during the continuance of this agreement by an officer to be appointed for that purpose by the Vendors and the quantity of gas so supplied for each month shall be deemed to be that ascertained by the reading of the said meter or meters. Provided that if any of the days herein-before appointed for reading the said meter or meters shall fall on a Sunday or a public holiday then the said meter or meters shall be read on the first day thereafter which is not a public holiday or a Sunday. The Vendors shall each month give to the Purchasers or their gas manager for the time being at least twenty-four hours' notice of the time at which the meter or meters will be read and such gas manager shall be entitled to be present.

(C) In the event of the before-mentioned meter failing to register the gas passed through the same during the whole or any part of any month the quantity considered to pass through the said meter for such month or part of a month shall be deemed to be that supplied during the corresponding month or part of a month of the year last past in which the said meter shall have correctly measured.

(D) In the event of the before-mentioned meter or meters being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding month unless it be proved to have first arisen during the then current month.

10. The gas to be supplied by the Vendors to the Purchasers under this agreement shall be supplied at such pressure as may be required by the Purchasers not exceeding a pressure sufficient to balance a column of

A.D. 1913. water six inches in height at the point of supply and shall be of such illuminating power and quality in all respects to enable the Purchasers to supply gas in compliance with the provisions of the said Bill and the Acts incorporated therewith.

11. The Vendors shall until the transfer day continue to carry on and manage the undertaking in the usual course of business and shall uphold maintain and keep the works and property included in the undertaking in their present state and condition (reasonable wear and tear excepted) but from and after the date of this agreement no new mains (other than service pipes) shall be laid by them in the Mynyddislwyn district without the written consent of the Purchasers. Such consent not to be unreasonably withheld and to be signified under the hand of the clerk to the Purchasers.

12. The Purchasers shall as from the transfer day take over all agreements and contracts for the supply of gas within the Mynyddislwyn district and indemnify the Vendors from and against all actions proceedings claims and demands under or in consequence or by reason of every such agreement or contract or the breach or non-performance thereof.

13. All books of account and other documents in the possession of the Vendors shall remain the property of the Vendors but the Purchasers shall have the right at all reasonable times to inspect the same so far as they relate to the supply of gas by the Vendors within the district of the Purchasers.

14. All rents and charges due to the Vendors at the transfer day in connexion with the undertaking shall continue to be recoverable by the Vendors as if this agreement had not been made.

15. All deposits made with the Vendors by consumers in the Mynyddislwyn district shall be paid over to the Purchasers as trustees for the consumers but the Vendors shall have the right to retain out of the deposit of any consumer any debt owing to them from such consumer.

16. The Purchasers shall use their best endeavours to secure the passing of the said Bill into law and the confirmation thereby of this agreement and the Vendors will if so required by and at the expense of the Purchasers by evidence or otherwise render assistance in procuring the passing of such Bill.

17. If any question difference or dispute shall arise with reference to this agreement or the construction thereof or as to anything herein contained or as to anything not fully provided for or as to the rights liabilities or duties of either party hereunder the same shall be referred

to Thomas Canning as arbitrator or failing him to an arbitrator to be appointed by the Local Government Board and the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof shall apply to such reference and arbitration and to this agreement as if it were a submission to arbitration under that Act. A.D. 1913.

18. This agreement is subject to confirmation by Parliament. During the progress through Parliament of the said Bill no modification or alteration thereof which shall involve any material modification or alteration of the terms of this agreement or which shall materially affect the Vendors shall be made by the Purchasers except with the consent of the Vendors. In the event of either House of Parliament making any material alteration in the said Bill which is inconsistent with the provisions of this agreement or which shall materially affect either the Vendors or the Purchasers either party may withdraw from this agreement by notice in writing addressed to the other party before the Bill is read a third time in the House of Lords and thereupon so much of the Bill as relates to the subject matter of this agreement shall be withdrawn.

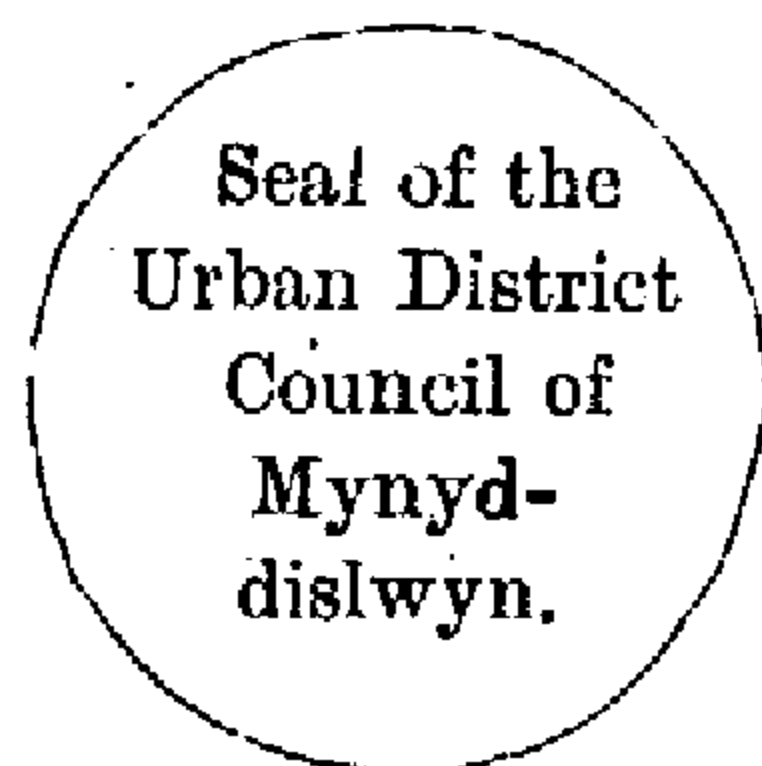
In witness whereof the Vendors and the Purchasers have hereunto caused their respective common seals to be affixed the day and year first above written.

The common seal of the Risca
Urban District Council was
hereunto affixed in the pre-
sence of



JOHN H. LONES }
A. E. H. BENSON } Members of the Council.
J. F. WALMSLEY Clerk.

The common seal of the Mynyddislwyn Urban District Council was hereunto affixed in the presence of



DAVID TREASURE Chairman.
TREVOR C. GRIFFITHS Clerk.

A.D. 1913.

THE SECOND SCHEDULE.

GAS LANDS.

A plot of land comprising the enclosure numbered 1863 and portions of the enclosures numbered 1769 and 1770 on the $\frac{1}{2500}$ Ordnance map (Mon.) sheet XXVII. 7 (2nd edition 1901) together with the portion of the existing siding and of the house and premises situate on such plot of land which plot of land contains by admeasurement 4 acres or thereabouts in extent and is bounded on the west by the Sirhowy Branch of the London and North Western Railway on the south by the boundary between the urban district of Mynyddislwyn and the urban district of Bedwas and Machen on the east by the Sirhowy River and on the north by an imaginary straight line drawn from the southernmost corner of the property numbered 1768 on the said Ordnance sheet to the said branch railway through the northernmost gate on the said siding.

THE THIRD SCHEDULE.

FORM OF MORTGAGE.

MYNYDDISLWYN URBAN DISTRICT.

By virtue of the Mynyddislwyn Urban District Council Act 1913 and of any other powers in that behalf them enabling the Mynyddislwyn Urban District Council (herein-after called "the Council") in consideration of the sum of _____ pounds paid to the treasurer of the Council by _____ (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Council in the said Act defined as the said sum of _____ pounds so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____ shall be fully paid and satisfied with interest for the same at the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until payment of the said principal sum such interest to be paid half-yearly on the

day of _____ and the _____ day of _____ A.D. 1913.
in each year And it is hereby agreed that the said principal sum of _____
_____ pounds shall be repaid at the office of
the Council in the said district on the
day of _____ one thousand nine hundred and _____ :

Provided always and it is hereby agreed and declared that the
before-mentioned time for repayment may with the consent of the
mortgagee be extended to such subsequent day or days and upon
any such extension the before-mentioned rate of interest may be altered
to such other rate or rates of interest as shall from time to time be
mentioned and specified in an endorsement to be made hereon under
the hands of the chairman and clerk of the Council for the time being
respectively and that upon any such endorsement being made whether
relating to extension of time only or to extension of time with alteration
of rate of interest the provisions thereof shall be incorporated herewith
and shall operate and take effect as though they had been originally
inserted herein.

In witness whereof the Council have caused their common seal to
be hereunto affixed this _____ day of _____
one thousand nine hundred and _____

The Endorsement within referred to.

The within-named _____ consenting the
within-mentioned time for repayment of the within-mentioned principal
sum of _____ is hereby extended to
the _____ day of _____ one thousand
nine hundred and _____ [and the interest to be paid
thereon on and from the _____ day of _____
one thousand nine hundred and _____ is hereby declared to be
at the rate of _____ per centum per annum].

Dated this _____ day of _____ one
thousand nine hundred and _____

FORM OF TRANSFER OF MORTGAGE.

I [the within-named _____
of _____] in consideration of the
sum of _____ pounds paid
to me by _____ of _____
(herein-after called "the transferee") do hereby transfer to the trans-

A.D. 1913. feree [his] executors administrators and assigns [the within-written security] [the mortgage number of the revenues of the Mynyddislwyn Urban District Council bearing date the day of] and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one
thousand nine hundred and

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